

Court No. - 32

Case :- WRIT - C No. - 28822 of 2018

Petitioner :- Ikbāl Hussain

Respondent :- Managing Director, Madhyanchal
Vidyut Vitaran Nigam Limited And 2 Others

Counsel for Petitioner :- Ashish Kumar Gaur

Counsel for Respondent :- Kapil Dev Singh
Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by learned counsel for the petitioner,
put up on 30.08.2018, as fresh.

Order Date :- 27.8.2018

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Respondent :- Managing Director, Madhyanchal Vidyut
Vitaran Nigam Limited And 2 Others

Counsel for Petitioner :- Ashish Kumar Gaur

Counsel for Respondent :- Kapil Dev Singh Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed by learned counsel appearing on behalf of the Electricity Department, put up as fresh on 6.9.2018 to enable him to seek instructions in the matter.

Order Date :- 30.8.2018

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Counsel for Petitioner :- Ashish Kumar Gaur

Counsel for Respondent :- Kapil Dev Singh Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(a) Issue a writ, order or direction in the nature of certiorari the respondent department to quash the impugned electricity bill dated 12.06.2018 issued by the respondents against the petitioner.

(b) Issue a writ, order or direction in the nature of mandamus directing the respondent department to stay the effect and operation of the impugned electricity bill dated 12.06.2018 against the petitioner."

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 15 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 6.9.2018

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